
This Mortifying Attempt to Trap Jack Smith in Perjury Was Like Something Out of The Office

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This Mortifying Attempt to Trap Jack Smith in Perjury Was Like Something Out of The Office

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Are former special counsel Jack Smith, the Atlanta Hawks, and Fulton County District Attorney Fani Willis connected in a deep-seated conspiracy to persecute Donald Trump? The seemingly obvious answer would be no. It is not so obvious, though, to Missouri Sen. Eric Schmitt, who seemed to think on Tuesday that he had concocted the perfect gotcha moment against Smith. During a Senate judiciary hearing, an overly zealous Schmitt claimed he had text messages proving Smith attended an Atlanta Hawks game *the day after* Willis made headlines for admitting to maintaining a romantic relationship with a prosecutor on her staff. You might be asking, “So what?” It’s a good question. But according to Schmitt, Smith’s alleged attendance at this basketball game meant that he and Willis had colluded on her 2020 election interference indictment of Trump and 18 others, looking together for a way to keep it alive after Willis’ romantic escapades jeopardized her prosecution.

- Video from Slate

Smith, as you might expect, was confused by this line of questioning, stammering that he didn’t recall attending any Hawks games. This was when Schmitt, believing he was on the verge of a slam dunk, accused Smith of perjury. Schmitt’s theory, though, couldn’t even hit the rim: It turned out that Smith had not attended the Hawks game in question. As Democratic Sen. Amy Klobuchar pointed out, Schmitt had confused the Atlanta Hawks with the Iowa Hawkeyes, who were playing a women’s college basketball game the same day of the NBA Hawks game in question, but in Maryland, not Georgia.

The whole exchange [has to be seen to be believed](#).

extremely weird shit during the Jack Smith hearing -- Sen. Eric Schmitt's team briefly displays a poster board that Schmitt claims contains evidence Smith committed perjury, but then Schmitt's team takes it down before anybody can read it and refuses to show Smith what it says

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[Aaron Rupar \(@atrupar.com\) 2026-09-29T14:55:19.334Z](#)

Here is how the painfully cringeworthy back-and-forth played out:

Schmitt: So your testimony today is that you did not go to an Atlanta Hawks game on Feb. 3, 2024, is that correct?

Smith: I have no recollection of that.

Schmitt: OK, is it your testimony that you were not in Atlanta on Feb. 3, 2024?

Smith: [*Silent, appears dumbstruck.*]

Schmitt: Let me just give you a little context, the day before Fani Willis came clean with her affair with the prosecutor, you know the Atlanta prosecutor that was also trying to get Trump: The next day were you in Atlanta?

Smith: I do not believe so.

Schmitt: Did you ever go to Atlanta during your time as special counsel?

Smith: I really don't think so. It's possible I flew through the Atlanta airport on the way to Florida, but I do not have a recollection of going to Atlanta. I definitely did not go to a Hawks game. I'm sure of that.

Schmitt: Did you ever meet Nathan Wade or Fani Willis during your time as special counsel?

Smith: No.

Schmitt: What would you say if I had a series of text messages from your team that said you were in Atlanta at a Warrior–Hawks game on Feb. 3, 2024, the day after Willis and Wade announced their affair?

Smith: [*Silent.*]

Schmitt: I don't think you know that we have this stuff, so I'll give you a second to process it so that you don't perjure yourself.

Smith: You just took it down really quick, if I could look at that again.

...

Schmitt: [*Refusing to put the text messages back up.*] I think you've already perjured yourself.

When Smith finally [got a handle on what was going on](#), with the help of Klobuchar, it was painfully embarrassing to witness, yet Schmitt doubled down.

Smith: I recall going to a University of Maryland basketball game where Caitlin Clark was playing, right around that time, and the Marshals Service was there with me. You can check if it was that exact date, it was Maryland playing Iowa, I think February of 2024, but again, you could check that out if that's what we're talking about.

Klobuchar: Could it then be that the University of Iowa is the Hawkeyes, could that be it and maybe before we show this kind of thing. ... Is that correct?

Smith: It was because Caitlin Clark was coming to Maryland to play. And so we went to the game, I took my daughter.

Klobuchar: That might be the confusion over the names of the team, but perhaps [Sen. Schmitt] should have looked at it more carefully.

...

Schmitt: I'm glad you're trying to rehabilitate the witness, but it's not your time.

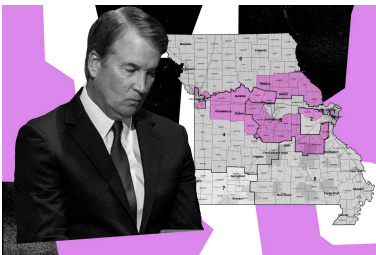
Klobuchar: When you are calling a witness a "dirtbag" and showing him these things.

Schmitt: I presented him with text messages about him wanting to meet with people that could have obviously been related to the prosecution that was coordinated with his office in Atlanta.

Klobuchar: I'm going to begin my questions now, but I think people should have their facts straight before they accuse someone of being a "dirtbag" and not get the teams wrong.

Klobuchar's staff then [confirmed](#) that Schmitt had in fact gotten the teams' names wrong. On Feb. 3, 2024, the Iowa Hawkeyes had a [game](#) in Maryland with Clark scoring 38 points.

"For a U.S. senator to have false information and imply, based on a confusion about the name of a team—which I knew, knowing my Midwestern sports—that you were in another city, that you were somehow involved that day in what was happening in Georgia," said Klobuchar to Smith. "And then call you a 'dirtbag' deserves an apology." Spoiler alert: Schmitt did not apologize.



Billy Corriher

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Instead, Schmitt continued to push the blatant falsehood. Immediately after Tuesday's hearing, the Republican senator was on *The Charlie Kirk Show*, where he said the "only NBA or NCAA men's game going on at that time was in Atlanta"—a moot point, since Smith said he attended a *women's college* basketball game. Schmitt also told the show that his job as a senator was simply to "ask the questions," dumbing down the responsibilities of one of Congress' highest elected offices in an obvious effort to distance himself from any responsibility of such an embarrassing mistake. He also made sure to repeat that he believed Smith had "lied under oath time and time again," likely an attempt to keep perjury inquiries into Smith alive and well.

For years, Trump has attacked Smith, from calling him a ["thug"](#) who should be investigated and put in prison to ["deranged"](#) and suggested Smith's indictments were a "Democrat scam." Now with control of the White House and both chambers of Congress—for now—Trump is likely frothing at the

mouth to bring yet another vindictive prosecution against the man who brought two massive criminal indictments against him, publicly revealing how classified documents were unlawfully taken from the White House and [stored in a Mar-a-Lago bathroom](#).

Terrified of angering the president, Republicans have largely fallen in line to support the failed prosecutions of New York Attorney General Letitia James, James Comey, and others. Schmitt's latest scheme against Smith is yet another example of that blind loyalty. It's also consistent with Schmitt's penchant for [white nationalist conspiracy theories](#).

It has been years since Smith first unveiled his two indictments of Trump, one over the unlawful retention of classified documents and the other over efforts to overturn the 2020 election results. Both of the cases were ultimately dismissed, and days before Trump's second inauguration, Smith resigned from his special counsel post. But the GOP has refused to let Smith go, hoping to find a way to prosecute him for daring to hold Trump and his allies accountable. Their sights seem to be set on perjury, seeking desperately to find inconsistencies in Smith's recollection of his criminal investigations.

Unfortunately for Schmitt, pinning potential perjury charges on a basketball game Smith never attended was probably never going to work.

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